



AN ACT GENERALLY REVISING PROFESSIONAL OCCUPATION LAWS RELATED TO PRIVATE SECURITY; CLARIFYING THE DEFINITIONS OF "ELECTRONIC SECURITY FIRM", "PRIVATE SECURITY GUARD", AND "SECURITY ALARM INSTALLER"; AMENDING SECTIONS 37-60-101, MCA; AND PROVIDING AN EFFECTIVE DATE.

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

Section 1. Section 37-60-101, MCA, is amended to read:

"37-60-101. Definitions. As used in this chapter, the following definitions apply:

(1) "Armed" means an endorsement authorizing a private investigator or a private security guard to possess and use one or more firearms in the performance of professional duties according to training and reporting requirements prescribed by this chapter and department rule.

(2) "Armed carrier service" means a private security firm that provides the transport or the offer to transport items of value under an armed private security guard.

(3) "Department" means the department of labor and industry provided for in 2-15-1701.

(4) (a) "Electronic security firm" means a person who sells, installs, services, or maintains a security alarm system that automatically communicates with a public safety agency or public safety answering point as defined in 10-4-101 and who employs security alarm installers.

(b) The term does not include a person whose primary business is that of a locksmith and who may also install closed-circuit television cameras and battery-operated door devices.

(5) "Licensee" means a person licensed under this chapter.

(6) "Private investigator" means an individual who for any consideration makes or agrees to make any investigation relevant to:

(a) crimes against the United States or any state or territory of the United States;

(b) the identity, habits, conduct, business, occupation, honesty, integrity, trustworthiness, efficiency, loyalty, activity, movement, location, affiliations, associations, transactions, reputation, or character of any person;

(c) the location, disposition, or recovery of lost or stolen property;

(d) the cause of or responsibility for any fires, libels, losses, accidents, or injury to persons or property; or

(e) gathering evidence to be used before any court, board, officer, or investigating committee.

(7) "Private security firearms instructor" means an individual who instructs private investigators and private security guards in the use of firearms that may be used while performing professional duties.

(8) "Private security firm" means a person who provides one or more of the following:

(a) private security guard services;

(b) armed private security guard services; or

(c) armed carrier services.

(9) "Private security guard" means an individual employed ~~by a private security firm~~ to protect persons or property or to direct public movement in public areas.

(10) "Registered process server" means a person described in 25-1-1101.

(11) (a) "Security alarm installer" means an individual employed by an electronic security firm to sell, install, service, or maintain security alarm systems that automatically communicate with a public safety agency or public safety answering point as defined in 10-4-101 to detect and signal unauthorized intrusion, movement, break-in, or criminal acts.

(b) The term does not include a person whose primary business is that of a locksmith and who may also install closed-circuit television cameras and battery-operated door devices.

(12) (a) "Security alarm system" means an assembly of equipment and devices or a single device or a portion of a system intended to detect or signal or to both detect and signal unauthorized intrusion, movement, or criminal acts at a location.

(b) The term does not include systems that monitor temperature, humidity, or any other atmospheric condition not directly related to the detection of an unauthorized intrusion or criminal act at a location."

Section 2. Effective date. [This act] is effective July 1, 2025.

- END -

I hereby certify that the within bill,
SB 198, originated in the Senate.

Secretary of the Senate

President of the Senate

Signed this _____ day
of _____, 2025.

Speaker of the House

Signed this _____ day
of _____, 2025.

SENATE BILL NO. 198

INTRODUCED BY J. TREBAS, G. NIKOLAKAKOS

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